

1 ENGROSSED HOUSE
2 BILL NO. 3448

By: Wilk of the House

3 and

4 Standridge of the Senate

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7 An Act relating to the Children and Juvenile Code;
8 requiring group homes to maintain general liability
9 insurance coverage; directing the Department of Human
10 Services to promulgate rules; providing that certain
11 form be completed annually; requiring the group home
12 to maintain form; requiring that the insurance policy
13 or contract be maintained at all times; providing
14 that prevailing party shall be entitled to certain
15 fees and costs; providing for codification; and
16 providing an effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1-8-115 of Title 10A, unless
20 there is created a duplication in numbering, reads as follows:

21 A. A group home, as defined in Section 1-1-105 of this title,
22 shall maintain general liability insurance coverage of at least One
23 Hundred Thousand Dollars (\$100,000.00) for each occurrence of damage
24 to off-site personal property. An insurance policy or contract
required under this section shall cover damage to off-site personal

1 property that occurs while the child is in the care of the group
2 home.

3 B. The Department of Human Services shall promulgate rules
4 providing for a standard form to be signed and dated by an insurance
5 agent licensed in this state confirming that the group home has an
6 unexpired and uncanceled insurance policy or contract of at least
7 One Hundred Thousand Dollars (\$100,000.00) that meets the
8 requirements of this section. This form shall be completed annually
9 and shall be maintained by the group home.

10 C. The insurance policy or contract shall be maintained at all
11 times in an amount as required by this section.

12 D. The Department shall promulgate rules to implement the
13 provisions of this section.

14 E. The prevailing party in a civil action for damage to off-
15 site personal property that occurs while the child is in the care of
16 the group home shall be entitled to attorney fees and costs.

17 SECTION 2. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 2-11-101 of Title 10A, unless
19 there is created a duplication in numbering, reads as follows:

20 A. A group home, as defined in Section 2-1-103 of this title,
21 shall maintain general liability insurance coverage of at least One
22 Hundred Thousand Dollars (\$100,000.00) for each occurrence of damage
23 to off-site personal property. An insurance policy or contract
24 required under this section shall cover damage to off-site personal

1 property that occurs while the child is in the care of the group
2 home.

3 B. The Department of Human Services shall promulgate rules
4 providing for a standard form to be signed and dated by an insurance
5 agent licensed in this state confirming that the group home has an
6 unexpired and uncanceled insurance policy or contract of at least
7 One Hundred Thousand Dollars (\$100,000.00) that meets the
8 requirements of this section. This form shall be completed annually
9 and shall be maintained by the group home.

10 C. The insurance policy or contract shall be maintained at all
11 times in an amount as required by this section.

12 D. The Department shall promulgate rules to implement the
13 provisions of this section.

14 E. The prevailing party in a civil action for damage to off-
15 site personal property that occurs while the child is in the care of
16 the group home shall be entitled to attorney fees and costs.

17 SECTION 3. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 11th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate